heard again wherein the court adjourned it ‘sine die (with no appointed date for resumption)’.

‘Lackadaisical’ Approach

Under Section 5(2) of the Telegraph Act 1885, the Indian government has the authority to intercept telephonic conversations. Although the Telegraph Act does not specifically prescribe how the material collected is to be safeguarded, sections 23 and 24 of the act prohibit its dissemination in any form. Section 5 of the act and Rule 419A also specifically deal with the safeguarding of intercepted material.

After the telecom transcripts were published, the blame game began on who was responsible for their leak. The casual manner in which the government handled the issue surprised many.

In December 2010, Union Home Secretary G.K. Pillai spoke to *The Wall Street Journal* about the Radia tapes. He said that what had come out so far were only ‘juicy elements’ to ‘titillate’ the media and ‘the remaining 5,000-plus recordings contain the details that will actually assist investigators as they draw up formal charges against wrongdoers’.

Pillai’s statement was seen by many as a deliberate move linked to Tamil Nadu politics, as Union Home Minister P. Chidambaram hailed from the state. The Congress, it was reported, wanted to show the DMK in poor light to enhance its prospects in the next regional elections. Two of the accused, former Telecom Minister A. Raja and K. Kanimozhi, belonged to the DMK. A leading daily also commented that, ‘The persons who [stood] to gain the most from such an outcome were Union Home Minister P. Chidambaram and his son Karti Chidambaram, [who controlled] the party in Tamil Nadu.’

In the same interview to *The Wall Street Journal*, Pillai had also ‘dropped the first hint that his ministry may be the source of the leaks. … He reportedly claimed full knowledge of the contents of all the tapes.’ On 11 December, the home secretary, however, did a volte-face and said that he had ‘neither heard nor seen the tapes’. He added that the interpretation that he was leaking the tapes ‘at the behest of the Union Home Minister, is totally unfounded and false’. He was quick to add that the tapes had been shared with the CBI.

In the meantime, the media hunt for the remaining tapes continued. Until August 2013, there were five separate instances of leaks to the media. The